



File No.: EXP202208489

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complaining party) filed a complaint on July 1, 2022, with the Security Forces and Corps (Department of Interior of Catalonia), which was forwarded to the Catalan Data Protection Agency. The complaint is directed against the entity ROMESTONE, S.L. with NIF B05443155 (hereinafter, the complained party).

Briefly, the complaint states the following regarding the facts under analysis by this agency:

“resides in a rental arrangement of a room, in an apartment located at Calle ***DIRECCIÓN.1, along with other tenants, and that the complained party, which is the agency responsible for managing the rental, has installed a video surveillance camera in the common areas of the dwelling, without prior consent from the tenants, affecting their right to privacy.”

“...it is stated that consent for the installation has not been granted, having been informed by the landlord via email of the measure adopted (...) Access to the dwelling has been gained by taking advantage of the absence of the residents (document no. 1).

A copy of the aforementioned complaint, rental contract, a letter sent by the tenants to the complained party regarding the camera, including an image of it, and the response obtained from the complained party are provided as documentation.

SECOND: On July 14, 2022, this Spanish Agency for Data Protection received a copy of the complaint and all the documentation submitted, considering that this agency is competent to address the substance of the matter raised.

THIRD: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party on August 3, 2022, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The forwarding was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and notification was made as evidenced by the acknowledgment of receipt in the file.

FOURTH: On September 2, 2022, a response to the forwarding was received, in which the following is briefly argued:

“...it should be noted that the company ROMESTONE S.L. is engaged in the rental of rooms in dwellings designated for that purpose, so the only camera installed for that purpose is at the entrance, acting as a reception area (...) such that images are stored for 48 hours and are deleted, being replaced by new images (...)

Additionally, it should also be noted that all room tenants sign a housing assignment contract in which the presence of the camera at the entrance is stated (...) in order to guarantee the security of the facilities and the property, thus granting their express consent.

A copy of the “Housing Assignment” Contract is provided, where Clause 10 informs about the presence of a video surveillance system “in the common areas of the coliving to ensure the safety of users, with which full acceptance of cohabiting with such means is authorized.”

Documentary evidence (Annex I Documents 1-11) is provided with an informative poster indicating the presence of the cameras without further specification in this regard.

FIFTH: On September 12, 2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complaining party was admitted for processing.

SIXTH: On September 15, 2022, a new letter from the complaining party was received, providing a new address for administrative notifications.

SEVENTH: On June 22, 2023, the Director of the Spanish Agency for Data Protection decided to

initiate sanctioning proceedings against the complained party, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

EIGHTH: On July 7, 2023, a letter from the complained party was received stating the following regarding the facts presented:

"(...) the company ROMESTONE S.L. is engaged in the rental of rooms in dwellings designated for that purpose, so the only existing camera in the dwelling is for surveillance and is located at the entrance – reception – such that images are stored for 48 hours and are deleted, being replaced by new images in a loop, so that access to such data occurs only in cases of theft, robbery, assaults, sexual harassment, etc., reported by the victims or when there are conflicts involving the intervention of the State Security Forces, etc.

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Furthermore, we would like to clarify that the camera does not capture sounds in any case, and therefore, it does not record or store conversations or dialogues. It only has a decibel meter to alert of strange or annoying noises exceeding 25-30 decibels after 10:00 PM, as required by Law 37/2003, of November 17, on Noise, and in order to protect neighborhood coexistence.

Finally, as previously stated and proven in the earlier request, there is a video surveillance sign with the company's details as well as the email address gdpr@romestone.es for any inquiries regarding data protection, and thus we understand that the duty of data protection in accordance with the GDPR has also been fulfilled.

SECOND.- ON EXPRESS CONSENT.

In this regard, since all the assignees of the rooms, upon renting them, sign a housing assignment contract in which the existence of said camera at the entrance of the dwelling is stated in order to guarantee the safety of the property and the individuals residing therein, they grant their express consent, as we reproduce below, and for a complete reading, if the quality of the image does not allow it, it can be consulted in DOCUMENT NUMBER 8 to 11 previously provided, which is included in the file where the clause appears in all signed lease contracts.

In short, with this, we aim to refute what is contained in the resolution proposal regarding the absence of justification for the measure (point II) since there exists, and it has been demonstrated, a legitimizing basis for the purposes of Article 6 of the GDPR.

FIFTH.- ON THE OPPOSITION TO THE PRECAUTIONARY MEASURE.

To the extent that this is a resolution proposal that has not become final, and fundamentally, for not meeting, in this party's view, the well-known legal requirements necessary for its adoption (*fumus bonis iuris*, *periculum in mora*, etc.) since they are not stated in the notified proposal, we understand that the proposed precautionary measure cannot be applied as there is no justification in this regard and, consequently, a legal response, either material or procedural, cannot be articulated to it because, simply put, it has not been motivated.

For all the above reasons, I REQUEST that this written statement of allegations be accepted, that it be admitted, and that the instructing body adopt the filing of the file as the data protection regulatory framework has been complied with and there is no violation of any nature (...).

NINTH: On 15/09/23, a was sent to the cited company, proposing an administrative sanction of €6,000 (Six Thousand euros) as it was considered that the content of Article 6 of the GDPR was affected, due to the presence of a camera for internal control in the property, affecting the personal data of the residents without justified backing in the current regulations.

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TENTH: Upon consulting the database of this Agency on 04/10/23, no response has been received to the proposal, nor has compliance with any measure been accredited.

It is recorded in the information system of this agency that the telematic notification to the mentioned company was made on 15/09/23.

From the actions carried out in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First. The facts arise from the complaint dated 01/07/22, through which the following is conveyed:

“resides in a rental arrangement for a room, in an apartment located at Calle ***ADDRESS.1, along with other tenants, and that the party being complained about, which is the Agency responsible for managing the rental, has installed a video surveillance camera in the common areas of the dwelling, without prior consent from the tenants, affecting their right to privacy.”

“...it is stated that they did not authorize the installation, having been informed by the leasing entity via email of the measure adopted (...) That access to the dwelling was gained by taking advantage of the absence of the residents (folio nº1).

Second. It is established that the main responsible entity for the system is ROMESTONE S.L with NIF B05443155.

Third. The presence of a video surveillance camera system is established, the presence of which is not denied by the respondent, to monitor the access area to the property (the hall).

Fourth. It is established that the camera(s) of the installed system are operational, obtaining personal data of the residents of the property during their entries/exits from the property in question.

Fifth. It is established that there is an informative sign indicating it is a “video-monitored area” with the company's details as well as an email address gdpr@romestones.es.

LEGAL GROUNDS

I

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Following the amendments made to the current LOPDGDD (LO 3/2018, December 5) by Law 11/2023, of May 8, on the transposition of European Union directives regarding the accessibility of certain products and services, the migration of highly qualified persons, taxation, and the digitalization of notarial and registry actions; and which modifies Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials, the procedural deadline established in Article 64.2 "in fine" is applied to the present procedure.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Once that period has elapsed, it will expire, and consequently, the proceedings will be archived.

II

Before addressing the substance of the matter, it is necessary to clarify point Five of the document "Opposition to the Precautionary Measure."

In the initiation document of the referenced procedure, the following was expressly stated in the FJV. The presence of the camera(s) in its current location implies a continuous impact on the personal data of the residents of the property and of third parties accessing it, constituting excessive control over the entries/exits of the same, as well as recording conversations of the residents in their most strict intimacy by having the capability to record ambient sound, which justifies agreeing to disconnect it, at least temporarily, without prejudice to the possibility of ordering its removal, for the broad reasons stated.

This agency, contrary to what was stated, indicated the "temporary" disconnection of the mentioned device in order to minimize the impact on the residents of the property, without ensuring any right for the respondent, weighing the rights of third parties who continue to be affected in the "data processing" by controlling the main access to the dwelling.

Likewise, the respondent complains that they have not been able to access the content of the Administrative File, to which the reading of Article 53 of Law 39/2015 (October 1) is recalled.

"Likewise, they shall also have the right to access and obtain copies of the documents contained in the aforementioned procedures."

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There is no record of any request made in this regard, and it does not correspond to this Agency to determine how the legal representation of the respondent should be exercised, so the intended "complaint" must be dismissed for the reasons stated, with the administrative file being available to the respondent as soon as they request it in legal form.

Regarding the argumentation of the respondent justifying the presence of the camera inside the dwelling as a means of controlling entry, as if it were the .

The Spanish Constitution (1978) in its Article 18, paragraph 2, states the following: "The home is inviolable. No entry or search may be made therein without the consent of the owner or a judicial resolution, except in cases of flagrant crime."

The inviolability of the home constitutes a fundamental right of the person that guarantees their privacy within the space they choose, which is exempt or immune from invasions or external aggressions, by other persons or public authority.

As of today, there is no jurisprudential criterion that delineates what is understood by , that it is structured in different areas, as the respondent seems to intend, that is, some areas that we could consider "common" (entrance, dining area, or kitchen area as an example) and others of a "private" nature (such as bathrooms or bedrooms of the dwelling).

In simpler terms, once the main access door to the property is crossed, it is considered as a whole: a space in which the individual(s) live without being subject to social uses and conventions and exercise their most intimate freedom.

Therefore, unless a better jurisprudential criterion emerges that provides a new concept of as the respondent seems to intend, their argumentation must be dismissed for the reasons stated.

III

In the present case, we proceed to examine the complaint that has been referred to this Spanish Agency for Data Protection, which highlights the "presence of video surveillance camera(s) installed inside the rented dwelling" without any justification for such a measure.

Article 18, paragraph 4 of the Spanish Constitution states: "The law shall limit the use of information technology to guarantee the honor and personal and family privacy of citizens and the full exercise of their rights."

In Recital number 40 of the GDPR, it is indicated that for a "processing to be lawful, personal data must be processed on one of the legitimate bases established by law (...)."

Therefore, the "data processing" carried out with the camera(s) installed inside the property must be justified under the so-called legitimizing bases, meaning that the legality of the processing must be demonstrated in the list of situations or specific cases in which it is possible to process personal data. The aforementioned facts may constitute an infringement of the content of Article 6 of the GDPR (Regulation 2016/679/EU, April 27).

The first requirement for the lawful processing of personal data is that it has a legitimizing basis. It must be supported by one of the six enabling bases established in a closed manner in Article 6.1 of the GDPR, which states the following:

1.

Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation of pre-contractual measures at the request of the data subject;
- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, particularly when the data subject is a child (...).

The general purpose of video surveillance cameras is the protection of property, individuals, and facilities; however, certain precautions must be taken when installing them, as their presence may conflict with other fundamental rights at stake.

In current lease agreements, we find a relationship between two parties, whereby they mutually obligate themselves for a determined period to the transfer of a good or service, with the party benefiting from the possession being obliged to pay a certain price.

Under the lease agreement, one party (the lessor) is obliged to transfer the use of a thing to another (the lessee), who commits to pay a price as consideration (Article 1546 of the Civil Code).

Through this transfer, the lessee assumes a series of rights, including the preservation of their right to privacy and the protection of their personal data, needing to achieve a balance between the measures for the protection of the dwelling, so that the measures adopted in their case by the lessor do not infringe upon the freedom of the occupants of the property.

The presence of cameras inside the dwelling affects a space that ceases to be "exclusive" to the owner, becoming subject to enjoyment by a third party whose rights must be respected, including the right to privacy and the right to "protection of personal data."

Therefore, the "personal and domestic" scope in the capture of images from the interior of the private dwelling (Article 22.5 LOPDGD) disappears when the use and enjoyment of the private dwelling is temporarily ceded to a third party under a contractual modality, becoming a space reserved for their

strictest personal and family intimacy and also protected by data protection regulations, which generally do not allow the capture and processing of such data.

In recent years, there has been a change in the model of temporary occupation, witnessing the emergence of new figures such as tourist apartments, tourist flats, or shared rentals, with different regulatory frameworks and clear regulatory gaps, which sometimes lead to conflicts of interest between owners and tenants, affecting the jurisdictional matter of this agency, as it encounters situations of "data processing" that are difficult to fit within the regulatory framework or affect the right to the protection of personal data.

IV

In accordance with the evidence available in this sanctioning procedure, it is considered that the party complained against has proceeded to install a video surveillance system inside the dwelling that affects the processing of the data of the tenants thereof, without justified cause and without support in the aforementioned legitimizing bases.

The presence of an informative clause in "standard" contracts provided by the party complained against does not legitimize the presence of such devices inside the rented dwelling, as the tenant has the use and enjoyment of the property or the part of it subject to the contract, as a space reserved for their privacy.

The terms of the wording of the clause cannot be considered "free" but rather imposing in the terms presented, limited to informing about the presence of a video surveillance system, whose images are used at the discretion of the company itself.

It is essential to use consent "in the appropriate context." Consent can only be valid if the data subject can choose a real option and there is no risk of deception, intimidation, coercion, or significant negative consequences if they do not consent. If the consequences of consent undermine the person's freedom of choice, consent is not free.

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The respondent cannot claim that the mere imposition of a contractual clause implies freedom in its acceptance, without being subject to any limits, since this would mean that clauses could be imposed at will (for example, cameras in bathrooms or dining areas) and that the mere signing of the contract legitimizes the presence of image capture systems by itself.

Furthermore, the purported autonomy of the "will of the parties" is limited by laws, morality, and public order (Article 1255 of the Civil Code), in such a way that a part of the aforementioned contract does not fit within its nature, such as the presence of video surveillance cameras inside the dwelling.

The above connects with the matter at hand regarding data protection, as Article 4, paragraph 11 of the GDPR establishes the following:

“Consent of the data subject”: any manifestation of free, specific, informed, and unequivocal will by which the data subject accepts, either by a declaration or a clear affirmative action, the processing of personal data concerning them;

The purported purpose of protecting the property affects its interior and the areas “reserved” for the use of its inhabitants, with other informative clauses providing for the consequences in case of misuse (e.g., Clause Three Use of the Property).

Let us remember that the right to privacy consists of guaranteeing the free development of each individual's private life, without “interference from third parties”; the presence of interior cameras not only implies excessive control over the entrances/exits of the resident and/or guests but also constitutes a “data processing” that is not justified by security, as security doors could be installed or the tenants themselves could be the first to alert the Security Forces in case of a suspected theft or conflicts within the property.

Consequently, the protection of the home is merely an aspect of the protection of privacy that serves the free development of personality. Also, in this regard, the Constitutional Court affirms in STC 22/1984 that the right to the inviolability of the home constitutes a genuine fundamental right of the

person, established, as we have said, to guarantee the privacy of the individual within the space that the individual chooses and which must be characterized precisely by being exempt or immune to invasions or external aggressions, from other individuals or from public authority.

In this sense—Contentious-Administrative Judgment No. 2923/2020, Superior Court of Justice of Catalonia, Contentious Chamber, Section 3, Rec 237/2019 of July 2, 2020—.

"As stated in STC 10/2002, of January 17 (FFJJ 5 and 6), cited by the Prosecutor and by the appellant in protection, and later recalled in STC 22/2003, of February 10, the constitutional norm that proclaims the inviolability of the home and the prohibition of entry and home searches (art. 18.2 CE), despite..."

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The autonomy that the Spanish Constitution recognizes for both rights constitutes a manifestation of the preceding norm (art. 18.1 CE) that guarantees the fundamental right to personal and family privacy. Thus, if the right proclaimed in art. 18.1 CE aims to protect a reserved sphere of individuals' lives excluded from the knowledge of third parties, whether they are public authorities or private individuals, against their will, the right to inviolability of the home protects "a specific spatial area" where individuals exercise their most intimate freedom, free from all subjection to social customs and conventions. The protection of this right encompasses both the physical space itself and what emanates from the person and their private sphere within it. Therefore, we have asserted that the constitutional protection of the home is an instrumental protection that defends the areas in which a person's private life develops.

Among other consequences, this instrumental nature determines that the constitutional concept of home is broader than the private legal or administrative legal concept of home and does not admit "reductionist conceptions" (see, among others, STC 94/1999, of May 31, FJ 5, and 10/2002, of January 17, FJ 6 in fine). For this reason, we have stated in the legal foundation 8 of the aforementioned STC 10/2002 that "the essential feature that defines the home for the purposes of the protection granted by art. 18.2 CE lies in its suitability for developing private life within it and its specific purpose for such development, even if it is eventual."

This means, firstly, that its purpose or use constitutes the essential element for delimiting the constitutionally protected spaces, so that, in principle, its location, physical configuration, whether it is movable or immovable, the existence or type of legal title that enables its use, or finally, the intensity and frequency with which private life is developed therein are irrelevant. Secondly, although the effective development of private life is the determining factor for the specific suitability of the space in which it occurs to be considered a home, it does not necessarily follow that such suitability cannot be inferred from some of these characteristics, or others, insofar as they represent objective characteristics according to which it is possible to delimit the spaces that, in general, can and usually are used to develop private life. Furthermore, "the very instrumental nature of the constitutional protection of the home concerning the protection of personal and family privacy requires that, regardless of the physical configuration of the space, its external signs reveal the clear intention of its owner to exclude that space and the activities carried out therein from the knowledge and intrusions of third parties." From this, we drew the conclusion, when declaring the unconstitutionality of the provisions in art. 557 of the Criminal Procedure Law, that "hotel rooms can constitute the home of their guests, since, in principle, they are suitable places, due to their own characteristics, for private life to be developed therein, given that the usual purpose of hotel rooms is to carry out activities that can be generically framed within private life" (*the bold and underlining belong to this body).

These new figures of occupational rental cannot be equated to hotels or hostels with a reception, where the presence of video surveillance cameras is justified against luggage theft or minor thefts that may occur in that area, which does not affect privacy but rather the transit prior to lodging in their rooms.

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The restrictive measure must not only be materially and functionally suitable to limit the right based on its foundation; moreover, among the possible ways to impose the restrictive measure, only the form or means that is least burdensome to achieve that purpose may be chosen.

The installation of video surveillance devices cannot undermine the very concept of housing "as a refuge for human beings that provides them with privacy, space to store their belongings, and the freedom to develop their daily activities" in such a way that, in pursuit of a supposed security of the same, the right to privacy is unconditionally restricted, and related to this, their right to data protection, which may affect any common area that the manager of this type of housing decides to establish. Furthermore, the genesis of the conflict is due to alleged neighborhood complaints about noise outside the permitted hours that could originate from the dwelling, with the property equipped with an ambient sound capture device, which makes the adopted measure even more disproportionate, given that such behaviors can be analyzed by the security forces equipped with decibel meters or can be verified by the neighbors of the property themselves, adopting less harmful measures (e.g., reminder letters regarding the corresponding noise regulations, etc.).

The known facts constitute an infringement, attributable to the claimed party, classified under Article 6 of the GDPR, previously mentioned.

Article 72 of the LOPDGDD (LO 3/2018) "very serious infringements."

1.

According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and will prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

V

Article 83.5 of the GDPR states the following: "Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to up to 4% of the total global annual turnover of the previous financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9 (...)."

Article 72 of the LOPDGDD (LO 3/2018) "very serious infringements."

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1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and will prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

In the present case, the commercial nature of the claimed entity, responsible for managing this type of occupational rentals, the impositive nature of the , as well as the seriousness of the infringement are taken into account, since the absence of a legitimizing basis for data processing affects the "processing" of an area reserved for the privacy of the tenants of the property (which affects several residents), all of which justify a sanction set at the amount of €6,000 (Six thousand euros), a sanction situated in the lower scale for this type of behavior, taking into account the criteria of Article 83.2 letters a) and b) of the GDPR.

VI

The text of the resolution establishes what the committed infringements have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

The presence of the camera(s) in its current location entails a continuous impact on the personal data of the residents of the property and of third parties accessing it, implying excessive control of the entries/exits of the same, as well as proceeding to record conversations of the same in their strictest intimacy by having the possibility of recording ambient sound, which justifies agreeing as a measure the removal of the mentioned device, for the broad reasons stated.

It is noted that failure to comply with the requirements of this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may motivate such conduct to initiate a further administrative sanctioning procedure.

In view of the above, the following is issued:

Therefore, in accordance with the applicable legislation and evaluated the criteria for the graduation of the sanctions whose existence has been proven,

the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO IMPOSE on the entity ROMESTONE, S.L., with NIF B05443155, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €6000 (Six Thousand euros).

SECOND: TO ORDER ROMESTONE, S.L., with NIF B05443155, pursuant to Article 58.2.d) of the GDPR, to provide proof of compliance with the following measure within 15 working days from the day following the notification of this act:

- To proceed with the removal of the camera installed for monitoring inside the rental property, providing evidence of this with photographs showing the date and time before and after the adoption of the ordered measure.

THIRD: TO NOTIFY this resolution to the entity being claimed - ROMESTONE, S.L. - .

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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